

20PSCV00186 20PSCV00186

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Division: Civil Law and Motion

Department: O

Hearing date: 2026-09-23

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Case Number: 20PSCV00186 Hearing Date: September 23, 2026 Dept: O

Tentative

Ruling

Plaintiffs' MOTION TO VACATE DISMISSAL OF FIRST AMENDED COMPLAINT is GRANTED.

The court requests Plaintiffs file a proposed order.

Background

This case arises from an unpaid loan wherein after Plaintiffs demanded repayment of the loan, Defendant Chen transferred all of his assets, including certain real property, to his daughters. (Judgment in the underlying Action was entered on January 28, 2020 against Chen in the amount of \$ 153,348.47.)

On March 16, 2020, Plaintiffs JINGLANG SUN and LINJIA QIU filed suit against Defendants ZHI ANG CHEN aka MICHAEL CHEN, an individual ("Michael"); IRENE CHEN, an individual ("Irene"); WINNIE CHEN, an individual ("Winnie"); CHIH WEI LEE, individually and trustee of the CHIH WEI LEE RETIREMENT TRUST dated January 01, 2009.

On August 3, 2020, a notice of settlement of the entire case was filed. According to the notice, "The settlement agreement conditions dismissal of this matter on the satisfactory completion of specified terms that are not to be performed within 45 days of the date of the settlement. A request for dismissal will be filed no later than (date) June 2024."

On December 20, 2021, default was entered as

to “Zhi Ang Chen aka Michael Chen, Irene Chen, Winnie Chen, and Chih Wei Lee.”

On

January 19, 2022, Plaintiff dismissed the complaint “As to Chih Wei Lee, individually and trustee of the Chih Wei Lee Retirement Trust Dated January 01, 2009.”

On March 2, 2022, there was an OSC; according to the minute order, “Counsel indicates they had not received payment, however they have been in contact with defense and payments will resume.”

On August

18, 2023, Plaintiffs filed a request for entry of default judgment as to the remaining Defendants (Michael, Winnie, and Irene).

On October

18, 2023, the court denied entry of default judgment as substituted service appeared improper. As stated in the ruling: “Here, the only filings related to POS are the 5/08/23 filings. As to each, service is explained as follows: a registered California process server (Rod Collins) served each Defendant with a first amended complaint (and other documents) by

substituted service

on 4/10/2020 at 3 PM at 1313 Grand Ave. 11348 Walnut, Ca. 91789 by leaving the aforementioned documents with “Kevin Jin—Owner CPA Mail Service” and thereafter mailing the documents via first-class, postage prepaid. But the POS’ do not (1) provide a declaration of diligence that personal service upon Defendants was attempted, (2) whether the address is Defendants’ abode, and (3) whether Kevin Jin is a competent member of the household.”

On

June 20, 2025, an answer was filed by Irene and Winnie; for clarity, no answer was filed by Michael Chen.

On June 23, 2025, the court signed the order

to serve Defendant Michael (Zhi Ang Chen) via publication. (Note: the docket does not reflect a request for entry of default as to Defendant Michael. Furthermore, the attached proposed settlement attached as Exhibit B to this motion to vacate the court’s February 2026 order is does not name Michael as a party.)

On October 23, 2025, there was a CMC. According to the MO, "Counsel for Defendants Irene Chen and Winnie Chen represents that the parties have reached a settlement in principle but are finalizing all final terms."

On February 26, 2026, there was an OSC. According to the MO, "There are no appearances by or for the Plaintiff this date. The Court finds that the Plaintiff did not file a proposed Default Judgment package prior to this hearing. The Court rules as follows: The Court finds that the Plaintiff has abandoned prosecution of the case. The Court orders the Amended Complaint (1st) filed by Jinglang Sun, et al. on 03/16/2020 dismissed Without Prejudice."

On July 2, 2026, the instant motion was filed.

On September 10, 2026, an opposition (filed pro per) was filed.

Discussion^[1]

Plaintiffs seeks to set aside the February 26, 2026 order "not based on discretionary grounds, but on the mandatory relief provision of Code of Civil Procedure § 473(b)" because counsel "inadvertently failed to calendar the OSC hearing, and on February 26, 2026 did not appear for the hearing, leading to the action to be dismissed without prejudice."

The court must set aside the order. Code of Civil Procedure § 473(b) contains a mandatory provision: "Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any... (2) resulting default judgment or dismissal entered against his or her client..." (CCP § 473(b) (all emphasis added).) As further noted in the motion, mandatory relief under this provision extends to dismissals that follow a no-show to an Order to Show Cause where it was ruled the matter should be dismissed due to lack of prosecution. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 257–258 ["the mandatory provision applies when the attorney's mistake or neglect led to the dismissal"]; *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 616 [mandatory relief available for dismissal entered after demurrer sustained without leave].) And as further stated in the motion, unlike discretionary relief,

mandatory relief does not require the attorney's neglect to be "excusable"; even "inexcusable" neglect, plain errors, triggers mandatory relief if the attorney admits to them. (Id. at p. 612.)

To the extent an opposition has been filed, Defendants Winnie and Irene merely state what various minute orders state. But that misses the mark. The issue is whether the attorney's mistake/fault caused the dismissal and here, it did: the MO explicitly states the case is dismissed due to there being no appearance by counsel.

As for the minute orders referencing the failure to file a default judgment packet, upon review of the docket, there was no need for the filing of a default judgment as an answer is on file by Defendants Irene and Winnie, which precludes entry of default judgment.

To the extent that Defendants seek recovery of attorney fees for filing of the opposition, the opposition was filed in propria person (i.e., not by an attorney).

All in all, as there is already a (pending) settlement between the parties signed by Defendants Irene and Winnie on 1/28/26, they will not be prejudiced by the vacating of the court order.[2]

Conclusion

Based on the foregoing, the motion is granted.

[1] The motion states that Plaintiffs seeks to "set aside the dismissal with prejudice entered on November 7, 2025." The court believes that is an inadvertent error as no dismissal was entered in November 2025 and the motion rather makes numerous references to the February 26, 2026 order.

[2] That said, it's unclear why Plaintiffs have not the signed settlement agreement when the Chen Defendants signed it nearly nine months ago.